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Environmental Working Group: California Lawmakers Pass Bill to Create Landmark 'non-ultra-processed' Food Label

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WASHINGTON, Aug. 29 -- The Environmental Working Group issued the following news release on Aug. 28, 2026:

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California lawmakers pass bill to create landmark 'non-ultra-processed' food label

UPF labeling legislation now heads to Gov. Newsom's desk

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SACRAMENTO - Today the California Legislature took a major step toward protecting public health by passing a first-of-its-kind bill to create a certified "non-ultra-processed" food label intended to make it easier for consumers to choose less-processed foods in the grocery store.

Assembly Bill 2244, authored by Assemblymember Jesse Gabriel (D-Encino), would develop a state certification program for products that are not ultra-processed, or UPF. If enacted, it would create a new standardized and government-backed seal for non-UPF foods.

It would also require some of the largest grocery stores to highlight these products in store so they're easier for shoppers to identify.

The Environmental Working Group is cosponsoring the bill, which now heads to Gov. Gavin Newsom's desk for his signature.

"Parents shouldn't need a Ph.D. in chemistry to understand what they're feeding their kids," said Gabriel.

"AB 2244 will empower consumers with clear, trustworthy information and make it easier for them to locate healthier foods that are free from harmful additives. This new seal doesn't limit consumer choice, it just makes informed choice possible," he added.

A new standard for healthier food

Under AB 2244, the state would create a standardized label bearing the phrase "Non-Ultraprocessed Certified." Products would not be permitted to carry the new label if they are classified as UPF under state law.

Some types of food, such as substances or additives used to manipulate taste and quality, would not qualify for the new label. These food chemicals, such as dyes, flavor enhancers, non-sugar sweeteners and processing aids, are used to make food hyperpalatable and irresistible.

AB 2244 builds on a precedent-setting earlier law by Gabriel. AB 1264 set the first U.S. legal definition of UPF and banned the worst UPF from K-12 public schools.

If Newson signs AB 2244, the California Department of Public Health would oversee approved agents' independent certification of products that meet the state's non-UPF standard and qualify to use the label.

AB 2244 would direct the department to accredit these third-party agents no later than June 1, 2029. It would also require product recertification at least every three years.

"This is about setting a higher bar for what we consider healthy food and helping consumers make wise choices," said Bernadette Del Chiaro, EWG senior vice president for California.

"Consumers deserve labels they can trust. And families deserve a simple way to tell which foods are closer to what comes from a kitchen rather than a factory."

"If enacted, the bill would establish a state-verified seal for foods free from the additives, emulsifiers, food dyes and flavors that have come to define the modern American diet," she added.

Transparency and accountability

The bill includes these strong oversight and transparency measures:

* Certification agents must register with the state and disclose all certified products

* The state can audit certification records at any time

* The state would maintain a public, online list of certified products

* Misuse of the label would be illegal and subject to enforcement

These provisions are designed to ensure the label's credibility.

Making healthier choices easier

In addition to creating the label, the bill would require large food retailers to display certified products carrying the label in a way that's easy for consumers to identify, such as through special signage or physical separation within the store.

This requirement would apply to any grocery store that sells more than 25 individual non-UPF-certified product types and brings in more than $10 million in annual sales.

Addressing the rise of UPF

UPF are industrially manufactured, chemically modified products often made with harmful additives to enhance taste, texture, appearance and shelf life.

In the U.S., these foods make up more than two-thirds of children's diets and more than half the typical adult diet.

Experts say ultra-processed food and drinks, particularly soda, are engineered to trick people into consuming more than they want.

Scientific research has linked diets high in UPF to serious health harms, including cancer, heart disease, Type 2 diabetes, metabolic disorders such as Crohn's disease and fatty liver disease, and mental health issues.

Obesity is chief among the health problems linked to UPF. Rates of obesity in the U.S. and globally have skyrocketed in tandem with the rising UPF consumption.

Help for consumers

Despite these concerns, consumers have no clear, standard labeling system to help them identify UPF.

With federal regulators slow to update oversight of food additives and processing, states are increasingly taking action to protect public health.

AB 2244 builds on California's leadership in addressing harmful food chemicals and improving transparency for consumers.

"Because companies are not required to disclose an ingredient's purpose, it can be really difficult even for experts, even for people like me who have a doctoral degree in nutrition, to look at a food package and determine whether a food is ultra-processed or not," said Alyssa Moran, ScD, MPH.

Moran is deputy director of the Center for Food and Nutrition Policy at the University of Pennsylvania.

"And from a behavioral science perspective, we also know people seldom use information on the back of food packages to make food decisions. So that is exactly why clear, science-backed labels on the front of food packages can be so influential in helping people to make better choices," Moran said.

"If we want to meaningfully curb disease, we need a suite of complementary policies that limit the availability of ultra-processed foods, while promoting non-ultra-processed alternatives. I firmly believe this is the only way we'll make progress," she added.

Consumers can consult EWG's Food Scores database to find products that are less processed. Food Scores also flags unhealthy ultra-processed food and drinks and can help identify alternatives.

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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Original text here: https://www.ewg.org/news-insights/news-release/2026/08/california-lawmakers-pass-bill-create-landmark-non-ultra

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